

2:00PM LINE 4

24-CIV-01135

RYAN KOLSTAD VS. LIFEMARK GROUP, A SUBSIDIARY OF NORTHSTAR MEMORIAL GROUP, ET AL

RYAN KOLSTAD

LIFEMARK GROUP, A SUBSIDIARY OF NORTHSTAR MEMORIAL GROUP

PRO SE

CARRIE A. STRINGHAM

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Defendant Northstar Memorial Group, LLC's Demurrer to Plaintiff Ryan Kolstad's Second Amended Complaint

**TENTATIVE RULING:**

Defendant Northstar Memorial Group, LLC's demurrer to plaintiff Ryan Kolstad's Second Amended Complaint (SAC) filed on February 23, 2026, is **SUSTAINED without leave to amend**.

**A. Background**

Plaintiff Ryan Kolstad alleges that he was employed by defendant Northstar Memorial Group, LLC beginning in January 2011. The employment relationship terminated and resumed multiple times through 2023. Plaintiff alleges he suffered discrimination and defamation by Northstar employee, defendant Greg Lim, throughout plaintiff's employment.

The initial complaint — filed on February 27, 2024 — asserted ten causes of action based on the decade-plus alleged torts and breaches of contract. Former defendant Lifemark Group, Inc., since dismissed, filed a demurrer which the court sustained as to all ten causes of action.

Plaintiff filed his First Amended Complaint (FAC) on July 15, 2024. The FAC asserted ten causes of action and was largely the same as the prior complaint (although it added some 2023 conduct) and omitted Lifemark as a defendant. The court sustained the demurrer without leave to amend and plaintiff appealed.

The Court of Appeal issued its remittitur on February 18, 2025. The appellate court largely affirmed this court's ruling on the demurrer but "[concluded] that Kolstad should be allowed to amend his complaint to try again to state a valid cause of action for breach of contract" and reversed and remanded with respect to that one claim. (Declaration of Carrie A. Stringham iso Demurrer, exh. B.)

On February 23, 2026, plaintiff filed his Second Amended Complaint (SAC) asserting one cause of action for breach of contract.

Northstar has demurred to the SAC for failure to state facts sufficient to state a cause of action. (Code Civ. Proc. § 430.10, subd. (e); Civil Code § 1708.7.) Defendant argues that plaintiff failed to comply with the Court of Appeal's direction to plead specific allegations to assert a viable breach of contract claim and that the SAC fails to allege any breach by defendant.

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Arguing that there is no reasonable possibility that the defect can be cured by amendment (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 976; *Traverso v. Dept. of Trans.* (2001) 87 Cal.App.4th 1142, 1144-1145) defendant requests the court sustain without leave to amend.

Plaintiff opposes, contending at this stage in the proceedings the question is whether plaintiff's construction [of the parties' non-disparagement clause in their settlement agreement] may be rejected as a matter of law.

### **B. Legal Standard**

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).) The plaintiff need only allege ultimate facts, not evidentiary facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) The trial court then has an independent duty to "determine whether or not the . . . complaint alleges facts sufficient to state a cause of action under any legal theory." (*Das v. Bank of America, N.A.* (2010) 186 Cal.App.4th 727, 734.)

### **C. Discussion**

The issue before the court is whether the SAC "[alleges] that any of [defendant's] actions were taken in response to a potential employer's inquiry" and whether plaintiff has pled facts in support of his allegations that defendant breached the non disparagement clause of the settlement agreement, regardless of any such inquiry. (See Stringham Decl., exh. B, at p. 7.)

Plaintiff has not carried his burden of amending the three allegations the Court of Appeal identified as potentially supporting his claim for breach of contract. The three allegations read as follows:

- (1) in March 2020 Lim told Kolstad's employer to find a way to fire Kolstad,
- (2) in May 2021 Kolstad sent an email asking to return to work at a different cemetery (not Northstar), but the email was ignored at Lim's direction, and

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(3) in May 2022 Lim told another prospective employer to “watch out for [Kolstad] or he will sue you.”

(Stringham Decl., exh. B, at p. 7.)

The appellate court stated that “Kolstad should be permitted to amend his complaint regarding these allegations under the parties’ agreed-upon construction of the non-disparagement clause.” (Stringham Decl., exh. B, at p. 7.) The Court of Appeal remanded the matter “to give [plaintiff] the opportunity to amend his complaint if he can in good faith allege that any of these actions were taken in response to a potential employer’s inquiry.” (*Ibid.*) Further, it stated that “Kolstad should also be permitted to amend his complaint regarding these allegations under the parties’ disputed construction of the non disparagement clause,” noting that plaintiff’s construction of the clause “barred Northstar from disparaging him at all, regardless of any inquiry by a prospective employer.” (*Ibid.*)

The non disparagement clause in the parties’ settlement agreement reads as follows: “KOLSTAD agrees not to in any way disparage NORTHSTAR or Releasees at any time following the signing of this AGREEMENT. In response to any third party inquiries by prospective employers, NORTHSTAR agrees it shall only provide KOLSTAD’S dates of employment and job title.” (Stringham Decl., exh. B, at p. 2.)

The appellate court stated that “a reviewing court must accept the plaintiff’s allegations regarding the construction of an ambiguous contract, so long as the construction is not clearly erroneous.” (Stringham Decl., exh. B, at p. 8.) Further, “in our view the language is ambiguous enough to at least warrant providing Kolstad with the opportunity to amend his complaint, if he can, with specific allegations of any parol evidence that supports his construction of the clause. (See Code Civ. Proc., § 1856, subd. (g) [parol evidence may be considered “to explain an extrinsic ambiguity or otherwise interpret the terms of the agreement”].)” (*Id.*, at p. 9.)

With this guidance in mind, the court has reviewed the SAC.

Plaintiff alleges that he and Northstar entered into the settlement agreement on May 21, 2018. (SAC, ¶ 11.) Plaintiff alleges that third parties made disparaging statements to or about him in 2018 and 2019 and concludes that Lim and/or Northstar disclosed information about him to these third parties. (See *id.*, ¶¶ 20, 21, 24, 27, 28, 29.) Plaintiff does not plead facts supporting the allegations that Lim and/or Northstar disclosed any confidential or defamatory information.

With respect to the three allegations identified by the Court of Appeal, the SAC does not plead facts supporting plaintiff’s contention that Northstar breached the settlement agreement.

As to the first allegation regarding March 2020, paragraphs 30 and 53 allege that “[i]n or around March 2020, Plaintiff is informed and believes, and thereon alleges, that Greg Lim communicated with IPC Vice President Monica Bracho and influenced actions taken against Plaintiff, including attempts to portray Plaintiff as espousing racist sentiments and Plaintiff’s subsequent furlough for purported ‘production’ reasons.” That allegation does not support the

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claim that “in March 2020 Lim told Kolstad’s employer to find a way to fire Kolstad.” (Stringham Decl., exh. B, at p. 7.)

The SAC does not refer to any events in May 2021, when Kolstad allegedly “sent an email asking to return to work at a different cemetery (not Northstar), but the email was ignored at Lim’s direction.” (Stringham Decl., exh. B, at p. 7.) Rather, paragraphs 31 and 54 allege that “[i]n or around March 2021, Plaintiff is informed and believes, and thereon alleges, that Greg Lim communicated with IPC Vice President Monica Bracho and/or CEO Rick Miller regarding a Customer Experience Director job posting used to taunt Plaintiff and underscore Plaintiff’s inability to obtain stable industry employment.” Not only does the March 2021 allegation not reference plaintiff’s alleged request to work at a cemetery other than Northstar, it is unclear how a job posting allegedly was used to taunt plaintiff.

With respect to the allegation that “in May 2022 Lim told another prospective employer to ‘watch out for [Kolstad] or he will sue you,’” (Stringham Decl., exh. B, at p. 7), paragraphs 33-34 and 55 allege that “[i]n or around May 2022, Plaintiff is informed and believes, and thereon alleges, that Greg Lim communicated to Rose Hills manager Fred Nalder words to the effect of ‘watch out for this guy,’ which sentiment was then repeated/reverberated by Nalder in the Rose Hills office during Plaintiff’s first days there.” The phrase “watch out for this guy” is ambiguous, particularly because plaintiff does not allege that Lim said “or he will sue you.” Moreover, plaintiff now alleges that the statement was made in August 2018 when he worked at Inglewood park Cemetery (not Northstar) and claims he “observed and/or heard Jose Oleden loudly state words to the effect of ‘watch out or [Plaintiff] will sue us,’ in a manner heard by others in the office.” (SAC, ¶ 21.) Although plaintiff claims that Lim and/or Northstar must have disclosed information about his prior wage claim or the settlement (see *id.*, ¶ 22), plaintiff has not pled facts to support his allegation.

Because plaintiff has failed to support his breach of contract claim, including with facts that overcome and explain any claimed ambiguity, defendant’s demurer is **SUSTAINED**.

#### **D. Leave to Amend**

“[I]t is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.) Perfection in pleading is not required (*Lloyd v. R.K.O. Pictures, Inc.* (1955) 136 Cal.App.2d 638, 643) but “leave to amend should not be granted where ... amendment would be futile.” (*Nelson v. Tucker Ellis, LLP* (2020) 48 Cal.App.5th 827, 848, cleaned up.)

“Denial of leave to amend is appropriate only when it conclusively appears that there is no possibility of alleging facts under which recovery can be obtained. [*Ibid.*]” (Judges Benchbook, § 12.52, p. 1023.)” (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 689.) That being said,

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“[t]he onus is on the *plaintiff* to articulate the ‘specifi[c] ways’ to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend ‘only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case.’ (*CAMSI IV v. Hunter Technology Corp.* (1991) 230 Cal.App.3d 1525, 1542, 282 Cal.Rptr. 80 (*CAMSI*).)”

(*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.)

Here, plaintiff has been afforded multiple opportunities to amend the complaint to plead facts demonstrating that Northstar or its agents disparaged him in breach of the settlement agreement. Although plaintiff states he “can identify concrete pre-execution communications bearing directly upon the parties’ intended meaning” (Opp., at p. 9), the communication mentioned — a statement from defendant’s employee Wagner that [Lim] “would not be going anywhere” — does not clarify any ambiguity regarding the non-disparagement clause. At most, the statement indicates that Lim would continue to be employed by defendant, not that the parties had a specific understanding about the scope of the non-disparagement clause. Accordingly, for the reasons stated above, the court finds further leave to amend would be futile and leave to amend is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 5

24-CIV-03759

MEGHNA PATEL, ET AL VS. SHAWN WELLS, ET AL

MEGHNA PATEL  
SHAWN WELLS

CATHERINE S. ROBERTSON  
JAMES K. ROBERTS

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**Plaintiffs' Motion for Reconsideration of Oder After Hearing Issued May 8, 2026**

**TENTATIVE RULING:**

Plaintiffs Meghna Patel's and Christopher Pencavel's Motion for Reconsideration is **DENIED**.

Plaintiffs seek reconsideration of the court's May 8, 2026 Order Granting plaintiffs' Motion for Attorneys' Fees (Fees Order) against defendant Hudson Insurance Company (Hudson) pursuant to Code of Civil Procedure section 1008, subdivision (a).

Although Plaintiffs also requested fees against defendant Western Surety Company (Western) in the same Motion, the Fees Order requested further briefing from plaintiffs and Western as to attorneys' fees against Western. No order has been issued by the court regarding fees against Western at this time. As such, this ruling on the Motion for Reconsideration is limited to the Fees Order against Hudson and does not pertain to Western.

Plaintiffs request that the Fees Order be amended to preserve plaintiffs' rights to seek additional attorneys' fees. Plaintiffs previously filed a request for default judgment against Wells, which the court granted including attorneys' fees. Wells then filed a Motion to Set Aside the Judgment. Plaintiffs then filed an attorneys' fees motion against Hudson and Western arguing that they were jointly and severally liable for the attorneys' fees against Wells, and thus the court issued the Fees Order on May 8, 2026 granting fees against Hudson. Plaintiffs argue that when the court entered a modified default judgment against Wells on May 5, 2026, this constituted a change in circumstances that allows Plaintiffs to seek attorneys' fees for the Motion to Set Aside Judgment and for their attorneys' fees motion (fees on fees). Plaintiffs ask the court to remove the language in the Fees Order that "[o]nce plaintiffs took a default against Wells, he could no longer incur fees and costs" because it was rendered inaccurate when the court entered the modified judgment against Wells after a contested motion. Plaintiffs further claim that the language in the Fees Order that "the court will not award plaintiffs more in-attorneys' fees and costs against the sureties under Code of Civil Procedure, section 1029.8, than plaintiffs have been awarded against Wells in the default judgment" was also rendered invalid by the modified judgment.

A motion for reconsideration is based on new or different facts, circumstances or law. (Code Civ. Proc., § 1008, subd. (a).) Plaintiffs fail to show new or different circumstances to warrant reconsideration of the Fees Order. The court entered the modified judgment on May 5, 2026, prior to issuing the Fees Order. In fact, the Fees Order acknowledges the modified